



CHAPTER xci.

An Act to confirm certain Provisional Orders of the Local Government Board relating to Birmingham Bootle
Bradford Liverpool and Stockton-on-Tees. A.D. 1915.

[29th July 1915.]

WHEREAS the Local Government Board have made the Provisional Orders set forth in the schedule hereto under the provisions of the Public Health Act 1875:

38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Orders should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Orders as amended and set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in
schedule
confirmed.

2. This Act may be cited as the Local Government Board's Provisional Orders Confirmation (No. 5) Act 1915. Short title.

[Ch. xci.] *Local Government Board's* [5 & 6 GEO. 5.]
Provisional Orders Confirmation (No. 5) Act, 1915.

A.D. 1915. And whereas the Townships of Bootle cum Linacre and Orrell are
Bootle Order. included in the Borough and in the West Derby Union;

And whereas by Orders dated respectively the Sixth day of May One thousand eight hundred and ninety-one and the Sixth day of June One thousand eight hundred and ninety-six (herein-after referred to as "the Collectors' Orders") the Local Government Board directed that the Township of Bootle cum Linacre should for the purposes of the collection of the poor rates be divided into two districts termed respectively the No. 1 District and the No. 2 District and that the Guardians of the Poor of the West Derby Union should appoint a Collector of the Poor Rates for each of such districts and an Indoor Collector for the Township and in pursuance of such Orders Henry Musker now holds the office of Collector for the No. 1 District Albert Stanley Whitehead the office of Collector for the No. 2 District and Robert Owen the office of Indoor Collector;

And whereas by a further Order of the Local Government Board dated the Thirteenth day of June One thousand nine hundred and twelve the Collectors' Orders were rescinded but by Article II. of such Order it was provided that nothing therein should affect the appointment duties remuneration or tenure of office of any person then holding office under either of the Collectors' Orders and that any such person should continue to hold office by the same tenure and upon the same terms and conditions as those upon which he then held office;

And whereas by an Order dated the Ninth day of January One thousand eight hundred and ninety-six made by the Local Government Board under Section 33 of the Local Government Act 1894 the power of appointing and of revoking the appointment of any Assistant Overseer for the Township of Bootle cum Linacre was transferred to the Corporation and by Section 24 of the Act of 1905 the provisions of that Order were extended and applied to the appointment and revocation of the appointment by the Corporation of Assistant Overseers for the Township of Orrell and in pursuance of such Order and of such Section the said Henry Musker now holds the office of Assistant Overseer for each of those Townships;

And whereas it is proposed that the said Henry Musker should resign the offices now held by him of Collector of the Poor Rates for the No. 1 District of the Township of Bootle cum Linacre and Assistant Overseer for that Township and for the Township of Orrell and that the said Albert Stanley Whitehead should resign the office now held by him of Collector of the Poor Rates for the No. 2 District of the Township of Bootle cum Linacre in consideration of the payment to them by the Corporation of compensation for the loss of their offices at amounts which have been agreed upon between the Corporation and

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the said Henry Musker and Albert Stanley Whitehead respectively and that the said Robert Owen should cease to be an officer of the said Guardians and become an officer of the Corporation and the said Henry Musker Albert Stanley Whitehead and Robert Owen have consented to the aforesaid proposals subject in the case of the said Robert Owen to the provisions of Article II. of this Order ;

A.D. 1915.
Bootle Order.

And whereas by the Order of 1897 provision was made for the raising and repayment of moneys which the Corporation were thereby authorised to borrow and with respect to the costs of local inquiries ;

And whereas in pursuance of Section 64 of the Act of 1899 the Corporation have established a fund called and herein-after referred to as " the Bootle Corporation Superannuation and Thrift Fund " for the provision of payments or other allowances on death superannuation resignation retirement or discharge of persons in the service of the Corporation who have contributed to such fund ;

And whereas the Corporation have made application to the Local Government Board for the issue of a Provisional Order to alter or amend the Act of 1890 as altered as aforesaid in the manner herein-after set forth :

Now therefore We the Local Government Board in the exercise of the powers given to Us by Section 303 of the Public Health Act 1875 do hereby order that from and after the date of the Act of Parliament confirming this Order the Act of 1890 as altered as aforesaid shall be further altered so that the following provisions shall have effect that is to say :—

38 & 39 Vict.
c. 55.

Art. I.—(1) Any sum paid to the said Henry Musker by the Corporation by way of compensation for the loss of the offices held by him as aforesaid upon his resignation of those offices and any sum paid to the said Albert Stanley Whitehead by way of compensation for the loss of the office held by him as aforesaid upon his resignation of that office may be paid by the Corporation out of the borough fund and the borough rate of the Borough or out of moneys borrowed for the purpose under the provisions of this Order.

Funds out of which compensation to officers is to be paid.

(2) The Corporation may subject to the provisions of this Order borrow upon the security of the borough fund and borough rate of the Borough such sums not exceeding in the whole the sum of eleven thousand six hundred pounds as may be necessary for the purpose of making any payment to the said Henry Musker and to the said Albert Stanley Whitehead by way of compensation for the loss of the offices held by them as aforesaid upon their resignation of such offices.

Borrowing powers for purposes of compensation moneys.

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A.D. 1915.

Bootle Order.
 Period for
 repayment
 of moneys
 borrowed
 under this
 Order.

(3) The moneys borrowed under this Order shall be repaid within such period not exceeding twenty years from the date of borrowing as the Corporation determine and the period so determined shall with reference to the repayment of those moneys be the prescribed period for the purposes of the Local Loans Act 1875 and of the provisions of the Order of 1897 as applied by paragraph (4) of this Article.

Application
 of provisions
 of Order of
 1897 to pur-
 poses of this
 Order.

(4) The provisions of Article XII. and of Articles XIV. to XIX. and of Article XXI. of the Order of 1897 shall apply as if the said Articles were herein re-enacted and in terms made applicable respectively to the moneys borrowed under this Order and to any local inquiry held with reference to any of the purposes of this Order.

Superannua-
 tion and
 Thrift Fund.

Art. II.—(1) For the purposes of the Bootle Corporation Superannuation and Thrift Fund the said Robert Owen shall on his appointment to an office by the Corporation be deemed to have been in the service of the Corporation as from the Sixth day of February One thousand eight hundred and ninety-five.

(2) An amount equal to the contributions paid by the said Robert Owen to the said Guardians for the purposes of the Poor Law Officers' Superannuation Act 1896 shall on his appointment to an office by the Corporation be paid by the Guardians to the Corporation and shall be carried to and form part of the Bootle Corporation Superannuation and Thrift Fund and shall be deemed to be contributions made by him to that fund.

Appointment
 of additional
 clerical
 officers and
 servants of
 Corporation.

Art. III.—(1) The Corporation may appoint and remove such officers and servants as they deem necessary to assist in the collection of the rates levied in the Borough and in the work incidental thereto and fix the remuneration to be paid to such officers and servants.

(2) The remuneration of such officers and servants and the expenses incurred by them in the performance of their duties shall be apportioned to and paid out of such of the rates levied in the Borough in such manner and in such proportion as may from time to time in each case be determined by the Corporation.

(3) All officers and servants so appointed shall give such security for the due performance of their duties as may be required by the Corporation and every such security shall be deposited with the Corporation.

(4) The powers conferred by this Article shall be deemed to be in addition to and not in substitution for the powers possessed by the Corporation in regard to the appointment of Assistant Overseers under the provisions of the general law.

Consent of
 Treasury to
 borrowing
 during war.

Art. IV. Notwithstanding anything in this Order the Corporation shall not under the powers of this Order borrow any money during

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the continuance of the present war and twelve months thereafter unless A.D. 1915.
the consent of the Treasury has been previously obtained. *Bootle Order.*

Art. V. This Order may be cited as the Bootle Order 1915. Short title.

Given under the Seal of Office of the Local Government Board
this Twenty-first day of April One thousand nine hundred
and fifteen.

(L.S.)

HERBERT SAMUEL President.

WALTER T. JERRED Assistant Secretary.

CITY OF BRADFORD.

Provisional Order for altering the Bradford Corporation
Act 1903.

Bradford
Order.

To the Lord Mayor Aldermen and Citizens of the City of
Bradford;—

And to all others whom it may concern.

WHEREAS the City of Bradford (herein-after referred to as "the
City") is an Urban Sanitary District of which the Lord Mayor
Aldermen and Citizens acting by the council (herein-after referred to
as "the Corporation") are the Urban Sanitary Authority and there
are in force in the City the unrepealed provisions of the Bradford
Corporation Act 1903 (herein-after referred to as "the Local Act"); 3 Edw. 7.
c. cccxxiii.

And whereas by Section 54 of the Local Act the Corporation are
empowered subject to and in accordance with the provisions of that
section to raise by means of bills any money which they are authorised
to raise by the creation and issue of stock or of mortgages but by
paragraph (13) of the said section it is provided that except as therein
mentioned the aggregate amount payable on bills current at any one
time shall not exceed the sum of five hundred thousand pounds;

And whereas the Corporation have made application to the Local
Government Board for the issue of a Provisional Order to alter or
amend the Local Act in the manner herein-after set forth:

Now therefore We the Local Government Board in pursuance of
the powers given to Us by Section 303 of the Public Health Act 1875 38 & 39 Vict.
and by any other Statutes in that behalf do hereby order that from c. 55.
and after the date of the Act of Parliament confirming this Order the

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A.D. 1915.

*Bradford
Order.*

Increase of
aggregate
amount pay-
able on cur-
rent bills.

Restrictions
on issue of
bills.

Short title.

Local Act shall be altered so that the following provisions shall take effect that is to say:—

Art. I. Section 54 of the Local Act shall have effect as if the words “one million pounds” were inserted in paragraph (13) of the section instead of the words “five hundred thousand pounds.”

Art. II. The additional power of raising money by the issue of bills conferred by this Order shall only be exercised—

- (a) for the purpose of paying off moneys previously borrowed;
- (b) during the continuance of the present war and twelve months thereafter; and
- (c) with the previous consent of the Treasury.

Art. III. This Order may be cited as the Bradford Order 1915.

Given under the Seal of Office of the Local Government Board
this Twenty-first day of April One thousand nine hundred
and fifteen.

(L.S.)

HERBERT SAMUEL President.

WALTER T. JERRED Assistant Secretary.

CITY OF LIVERPOOL.

*Liverpool
Order.*

*Provisional Order for altering certain Local Acts and a
Confirming Act.*

To the Lord Mayor Aldermen and Citizens of the City of
Liverpool;—

And to all others whom it may concern.

WHEREAS the City of Liverpool (herein-after referred to as “the City”) is an Urban Sanitary District of which the Lord Mayor Aldermen and Citizens acting by the Council (herein-after referred to as “the Corporation”) are the Urban Sanitary Authority;

And whereas there are in force in the City the unrepealed provisions of the Liverpool Improvement Act 1867 the Liverpool Corporation Act 1900 the Liverpool Corporation Act 1902 the Liverpool Corporation (General Powers) Act 1905 the Liverpool Corporation (Streets and Buildings) Act 1908 and the Liverpool Corporation Act 1913 (each of which Acts is herein-after separately referred to as the Act of the year in which it was passed and all of which Acts are herein-after collectively referred to as “the Local Acts”) as altered by the Liverpool Order 1911 (herein-after referred to as “the Order of 1911”) which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 2) Act 1911 (herein-after referred to as “the Confirming Act of

30 & 31 Vict.
c. clxviii.
63 & 64 Vict.
c. ccxxxvii.
2 Edw. 7.
c. cexl.
5 Edw. 7.
c. clxxvii.
8 Edw. 7.
c. clxv.
3 & 4 Geo. 5.
c. lxxxii.
1 & 2 Geo. 5.
c. cxli.

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1911") and by certain other Local Acts and by certain other Provisional Orders duly confirmed by Parliament which do not affect the subject-matter of this Order ;

A.D. 1915.
Liverpool
Order.

And whereas the Corporation were empowered by Section 34 of the Act of 1867 to prescribe the line of building in any street and by Section 30 of the Act of 1902 to prescribe the width of new streets in certain cases and the said sections provided either for the purchase of lands by the Corporation or for the payment by the Corporation of compensation for loss or damage arising out of the exercise by the Corporation of their powers under those sections ;

And whereas by the Act of 1908 further powers were conferred on the Corporation with respect to streets and buildings ;

And whereas by Section 72 of the Act of 1867 the Corporation were empowered to borrow money for the purposes of the Act of 1867 including the purposes of Section 34 of that Act and by Section 30 of the Act of 1902 it was provided that moneys payable by the Corporation under that section should be defrayed out of moneys borrowed or to be borrowed under Section 72 of the Act of 1867 ;

And whereas the Corporation were empowered by Section 20 of the Act of 1905 to borrow further moneys for the purposes of Section 34 of the Act of 1867 and by Section 30 of the Act of 1908 to borrow and apply to the purposes of the Act of 1908 any moneys which the Corporation were authorised to borrow under Section 20 of the Act of 1905 ;

And whereas by subdivision (1) of Article I. of the Order of 1911 the Corporation are empowered with the sanction of the Local Government Board to borrow such sum or sums as may from time to time be required not exceeding in the whole the sum of two hundred thousand pounds for the purposes of Section 34 of the Act of 1867 Section 30 of the Act of 1902 and the Act of 1908 in addition to the sums previously authorised to be borrowed for those purposes ;

And whereas by Section 32 of the Act of 1900 as altered by the Act of 1905 and the Act of 1913 the Corporation are empowered subject to and in accordance with the provisions of that section as so altered to raise by means of bills any money which they are authorised to raise by the creation and issue of stock or of mortgages but by paragraph (13) of the said section as altered by Section 78 of the Act of 1913 it is provided that except as in the said paragraph mentioned the aggregate amount payable on bills current at any one time shall not exceed the sum of one million pounds ;

And whereas the Corporation have made application to the Local Government Board for the issue of a Provisional Order to alter or

[Ch. xci.] *Local Government Board's* [5 & 6 GEO. 5.]
Provisional Orders Confirmation (No. 5) Act, 1915.

A.D. 1915. amend the Local Acts as altered as aforesaid and the Confirming Act
Liverpool of 1911 so far as it relates to the Order of 1911 in the manner
Order, herein-after set forth :

38 & 39 Vict. c. 55. Now therefore We the Local Government Board in pursuance of the powers given to Us by Sections 297 and 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Acts as altered as aforesaid and the Confirming Act of 1911 so far as it relates to the Order of 1911 shall be altered so that the following provisions shall take effect that is to say :—

Additional borrowing powers for certain purposes of Local Acts. Art. I. The Acts of 1867 1902 1905 and 1908 as altered as aforesaid and the Confirming Act of 1911 so far as it relates to the Order of 1911 shall have effect as if the words “not exceeding in the whole the sum of two hundred thousand pounds” were omitted from subdivision (1) of Article I. of the Order of 1911 :

Consent of Treasury to borrowing during war. Provided that the Corporation shall not under the additional powers conferred by this Article borrow any money during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained.

Increase of aggregate amount payable on current bills. Art. II.—(1) Section 32 of the Act of 1900 shall have effect as if the words “two million pounds” were inserted in paragraph (13) of the section as altered as aforesaid instead of the words “one million pounds”.

Restrictions on issue of bills. (2) The additional power of raising money by the issue of bills conferred by this Article shall only be exercised—
 (a) for the purpose of paying off moneys previously borrowed ;
 (b) during the continuance of the present war and twelve months thereafter ; and
 (c) with the previous consent of the Treasury.

Short title. Art. III. This Order may be cited as the Liverpool Order 1915.

Given under the Seal of Office of the Local Government Board
 this Twenty-first day of April One thousand nine hundred
 and fifteen.

(L.S.)

HERBERT SAMUEL President.

WALTER T. JERRED Assistant Secretary.

BOROUGH OF STOCKTON-ON-TEES.

A.D. 1915.

*Provisional Order for altering the Tees Valley Water
(Consolidation) Act 1907.*

*Stockton-on
Tees Order*

To the Mayor Aldermen and Burgesses of the Borough of
Stockton-on-Tees ; —

And to all others whom it may concern.

WHEREAS the Borough of Stockton-on-Tees (herein-after referred to as "the Borough") is an Urban District of which the Mayor Aldermen and Burgesses acting by the Council (herein-after referred to as "the Corporation") are the Urban District Council and the local authority within the meaning of the Public Health Act 1875 ;

And whereas the unrepealed provisions of the Tees Valley Water 7 Edw. 7.
(Consolidation) Act 1907 (herein-after referred to as "the Act of c. lxxx.
1907") are in force in the district of the Tees Valley Water Board
which includes the Borough ;

And whereas in pursuance of the Act of 1907 the provisions of the Local Acts and of the Confirming Act referred to in column 1 of the Schedule to this Order (herein-after referred to as "the Schedule") so far as the last-mentioned Act related to the Provisional Order also referred to in that column all of which Acts are herein-after collectively referred to as "the repealed Water Acts" were repealed to the extent and subject as in the Act of 1907 mentioned ;

And whereas by such of the provisions of the repealed Water Acts as are mentioned in column 1 of Part I. of the Schedule and by the sanctions of the Local Government Board referred to in column 1 of Part II. of the Schedule the Corporation were empowered to borrow for the purposes respectively mentioned in column 2 of the Schedule the sums respectively set opposite to those provisions and sanctions in column 3 of the Schedule and have exercised those powers of borrowing or have incurred debt in relation to certain of those powers of borrowing to the extent of the sums respectively set forth in columns 4 and 5 of the Schedule (which last-mentioned sums are herein-after collectively referred to as "the scheduled water debts") ;

And whereas by Section 78 of the Act of 1907 it was provided that the Corporation should pay off all moneys borrowed by them under the repealed Water Acts and not repaid at the commencement

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A.D. 1915. of the Act of 1907 within the respective periods limited for their
Stockton-on-Tees Order. repayment by the repealed Water Acts and the scheduled water debts
are accordingly repayable within varying periods ;

And whereas at the Thirty-first day of March One thousand nine hundred and fifteen provision had been made for the repayment of the scheduled water debts to the extent of the sums respectively mentioned in column 6 of the Schedule and there remained to be provided for at that date the sums respectively mentioned in column 7 of the Schedule ;

And whereas the Corporation have made application to the Local Government Board for the issue of a Provisional Order to alter or amend the Act of 1907 in the manner herein-after set forth :

38 & 39 Vict. c. 55. Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Act of 1907 shall be altered so that the following provisions shall take effect that is to say:—

Uniform periods for repayment of certain portions of water debt.

Art. I. Notwithstanding anything contained in the Act of 1907 (1) the period within which provision shall be made for the repayment of so much of the scheduled water debts as is referred to in Part I. of the Schedule shall be fifty-five years from the Thirty-first day of March One thousand nine hundred and fifteen and (2) the period within which provision shall be made for the repayment of so much of the scheduled water debts as is referred to in Part II. of the Schedule shall be nineteen years from the Thirty-first day of March One thousand nine hundred and fifteen.

Short title.

Art. II. This Order may be cited as the Stockton-on-Tees Order 1915.

The SCHEDULE above referred to.

1. Act and Section or Authority.	2. Purpose.	3. Borrowing Powers.	4. Amount Borrowed at 31st March 1907.	5. Amount Borrowed or Debt incurred since 31st March 1907.	6. Amount provided for Repayment at 31st March 1915.	7. Amount to be provided for from 31st March 1915.
PART I.						
The Stockton and Middlesbrough Corporations Waterworks Act 1876. (39 & 40 Vict. c. ccxxx.) Section 40.	Purchase of undertaking.	£ s. d. 342,054 17 3	£ s. d. 342,054 17 3	£ s. d. 9,191 15 1*	£ s. d.	£ s. d.
The Stockton and Middlesbrough Corporations Waterworks Act 1876. (39 & 40 Vict. c. ccxxx.) Section 40.	New works	291,666 13 4	291,666 13 4	—		
The Stockton and Middlesbrough Corporations Waterworks Act 1884. (47 & 48 Vict. c. cciii.) Section 26.	Ditto	54,166 13 4	54,166 13 4	—	103,586 4 6	1,074,202 8 2
The Stockton and Middlesbrough Waterworks Act 1890. (53 & 54 Vict. c. cxvii.) Section 25.	New works &c.	163,450 0 0	163,450 0 0	—		

* This item represents the difference between the nominal amount of stock issued and the sum raised by the issue.

A.D. 1915.
Stockton-on-Tees Order.

A.D. 1915.
Stockton-on-
Tees Order.

SCHEDULE—continued.

Act and Section or Authority. 1.	Purpose. 2.	Borrowing Powers. 3.	Amount Borrowed at 31st March 1907. 4.	Amount Borrowed or Debt incurred since 31st March 1907. 5.	Amount provided for Repayment at 31st March 1915. 6.	Amount to be provided for from 31st March 1915. 7.
PART I.—continued.						
The Tees Valley Waterworks Act 1899. (62 & 63 Vict. c. li.) Section 15.	New works &c. -	£ s. d. 153,460 0 0	£ s. d. 153,460 0 0	£ s. d. —	£ s. d.	£ s. d.
The Tees Valley Water Act 1905 - (5 Edw. 7. c. cxxxiv.) Section 8.	Works - -	185,970 0 0	101,792 3 5	62,006 10 3		
PART II.						
Sanctions of the Local Government Board under Article IV. (1) of a Provisional Order of that Board dated the 29th day of April 1880 and confirmed by the Local Govern- ment Board's Provisional Orders Confirmation (Bethesda &c.) Act 1880. (43 & 44 Vict. c. clxxviii.)	Mains - -	83,333 6 8†	39,046 0 0	7,815 16 2	20,159 14 6	26,702 1 8

† Subject to the sanction of the Local Government Board. 47,948*l.* has been sanctioned.

[5 & 6 GEO. 5.] *Local Government Board's* [Ch. xci.]
Provisional Orders Confirmation (No. 5) Act, 1915.

Given under the Seal of Office of the Local Government Board A.D. 1915.
this Fourteenth day of April One thousand nine hundred *Stockton-on-*
and fifteen. *Tees Order.*

(L.S.)

HERBERT SAMUEL President.

WALTER T. JERRED Assistant Secretary.

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